



An applicant may reply to any **new** matters raised in the Response (Form 2) by completing this Reply (Form 3). You should only file a Reply if **new** matters were raised in a Response and your Reply should only deal with the **new** matters that were raised by the respondent in the Response.

Note that an applicant who intends to prove a version of the facts different from those set out in a Response must set out the different version by completing this Reply (Form 3), **unless that different version is already contained in the Application.**

Follow these steps to reply:

1. Fill out this Form 3.
2. Deliver a copy of this Form 3 to the other parties and any trade union or occupational or professional organization and other person or organization identified as an affected party in the Application and Response.
3. Complete a Statement of Delivery (Form 23).
4. File this Form 3 and Form 23 with the Tribunal.

You have **twenty one (21)** days after the Response was delivered to you by the Tribunal to deliver and file a Reply.

Download forms from the Tribunal's web site tribunalsontario.ca/hrto. If you need a paper copy or accessible format, contact us:

Human Rights Tribunal of Ontario
15 Grosvenor Street, Ground Floor
Toronto, ON M7A 2G6

Phone: 416-326-1312 Toll-free: 1-866-598-0322

TTY: 416-326-2027 Toll-free: 1-866-607-1240

Email: hrto.registrar@ontario.ca

**Application Information**

Tribunal File Number:	2026-66162-I
Name of Applicant:	Chong Tan
Name of Each Respondent:	Triton Canada Inc.

Identify the page or paragraph number of the Response where the new matter is raised and then explain your reply to this new matter. If you need more space please attach another sheet of paper. Number each additional page.

1A. What is the new matter raised in the Response? (page or paragraph number)

The Response raises the following new matters not contained in the Application:

- 1) A request for jurisdictional dismissal under Rule 13, on the basis that the Application allegedly fails to link the Applicant's Code grounds to adverse treatment (paragraphs 17-25 of the Response);
- 2) A denial that the Applicant experienced adverse impact, on the basis that she completed all screening steps and was not denied service (paragraphs 26-37 of the Response);
- 3) A characterization of the Form as "vendor-mandated" and "jurisdiction-specific, not identity-based" (paragraphs 31-33 of the Response); and
- 4) A request for a summary hearing under Rule 19A on the basis that the Application has no reasonable prospect of success (paragraphs 46-53 of the Response).

1B. What is your reply to this new matter? If you will submit a version of the facts different from that set out in the Response *and which was not included in your Application*, describe these facts here.

See attached Schedule A (Applicant's Reply to Response), which sets out the Applicant's response to the new matters raised in the Response.

2. Signature

By signing my name, I declare that, to the best of my knowledge, the information that is found in this form is complete and accurate.

Signature: <i>(If filing electronically, sign by typing your name here.)</i> Chong Tan	Date: <i>(dd/mm/yyyy)</i> 26/07/2026
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Collection of Information:

Under the Ontario *Human Rights Code*, the Human Rights Tribunal of Ontario (HRTO) has the right to collect the personal information requested on this form. We use the information to resolve your application. After you file the form, your information may also be available to the public. If you have questions about how the HRTO uses your personal information, contact the HRTO at 416-326-1312 or 1-866-598-0322 (toll-free.)

Schedule A

**ONTARIO
HUMAN RIGHTS TRIBUNAL**

B E T W E E N:

CHONG TAN

Applicant

— and —

TRITON CANADA INC.

Respondent

APPLICANT'S REPLY TO RESPONDENT'S RESPONSE

Chong Tan

Email: pessage2020@gmail.com

Applicant (Self-represented)

TO: **Registrar**
Human Rights Tribunal of Ontario
HRTO.Registrar@ontario.ca

TO:

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Counsel for the Respondent

AND TO:

Triton Canada Inc.
Respondent

PART I – OVERVIEW

1. The Applicant, Chong Tan, files this Reply pursuant to Rule 9 of the Human Right Tribunal of Ontario (the “HRTTO”)’s Rules of Procedure in response to the Response filed by Triton Canada Inc. (“Triton” or “the Respondent”) on April 30, 2026.
2. The Respondent’s Response mischaracterizes the nature of the Applicant’s claim and misstates the applicable legal threshold. The Applicant’s claim does not rest on inference, speculation, or temporal juxtaposition. The differential treatment in this case is explicit on the face of the Respondent’s own document: the Form is titled “Personal Details Sheet for Screening Purposes for PRC Citizens”. The nexus between the grounds protected under the *Human Rights Code* (the “Code”)¹ and the adverse treatment requires no inferential step.
3. The Respondent’s submission that the Applicant suffered no adverse impact because she “successfully cleared” all screenings conflates outcome with process and misapplies the Code. The imposition of a more invasive, burdensome evidentiary requirement on a person because of their citizenship and place of origin is itself adverse treatment under the Code, regardless of the ultimate result.
4. Furthermore, at the summary hearing stage, the HRTTO assumes the Applicant’s version of events to be true, and is careful not to dismiss an Application merely because the Respondent has an alternative explanation.²

PART II – RESPONSE TO FACTUAL ALLEGATIONS

5. The Applicant agrees that she purchased background screening services from Triton on or about March 24, 2025, and that she was provided with a document titled “Personal Details Sheet for Screening Purposes for PRC Citizens”.
6. The Applicant agrees that she ultimately completed the required screening steps and cleared all checks. However, the Applicant specifically disputes the Respondent’s characterization that her completion of the Form was voluntary or without objection. The Applicant completed the Form out of practical necessity to maintain her conditional offer of employment, under protest, after having raised explicit concerns to which the Respondent gave a dismissive response. She subsequently filed a formal complaint with Triton’s privacy officer on April 29, 2025, which received no meaningful response on May 16, 2025.
7. The Applicant disputes the Respondent’s characterization of the Form as merely “jurisdiction-specific”. The Respondent’s own Response confirms at paragraph 12 that the Form “has consistently been used by Triton for customers who are PRC citizens”. It is the Applicant’s citizenship and place of origin that triggered the requirement. This is differential treatment based on enumerated Code grounds, by the Respondent’s own admission.

PART III – THE APPLICATION IS WITHIN THE HRTTO’S JURISDICTION

8. The Respondent’s jurisdictional argument fails because it demands a level of proof at the pleadings stage inconsistent with the applicable threshold, and because it mischaracterizes the nature of the nexus in this case.
9. To fall within the HRTTO’s jurisdiction, “an Application must provide some factual basis beyond a bald assertion which links their ground(s) to the respondents’ actions and

¹ [RSO 1990, c H 19](#).

² *A.H. v Toronto Transit Commission*, [2026 HRTTO 504](#) at paras [36](#), [43](#) [*A.H.*].

explains why they think that these actions are discriminatory in nature”,³ and “there must be a basis beyond mere speculation and accusations to believe that an applicant could show discrimination on the basis of one of the grounds alleged in the *Code*”.⁴

10. In this case, however, no inferential or speculation is required. The Form provided to the Applicant by the Respondent is itself titled “Personal Details Sheet for Screening Purposes for PRC Citizens”. As a result, the nexus between the Code grounds (citizenship and place of origin) and the differential treatment is explicit and no further factual basis is required to establish jurisdiction.

A. Distinguishing *Gaspar v. Windsor Police Service*⁵

11. The Respondent relies on *Gaspar*, but that reliance is misplaced. In *Gaspar*, the applicant sought to draw an inference of discrimination from the temporal proximity of two independent events: he identified himself as Brazilian, and subsequently received an unhelpful response. The HRTO found that “temporal juxtaposition” alone was “simply insufficient to draw an inference” of discrimination.⁶
12. The present case is structurally different. The Applicant does not ask the HRTO to infer discrimination from surrounding circumstances. The discriminatory classification is written on the face of the Respondent’s own document and thus no inference is required.

B. Distinguishing *Forde*

13. The Respondent relies on *Forde* for the proposition that an application must provide a “factual basis beyond a bald assertion.”⁷ The Applicant does not dispute this principle. However, *Forde* involved an applicant who provided no specific facts linking the respondent’s conduct to a Code ground, in which the applicant only raised generalized assertions that the union acted against him because of his disability.
14. In the present case, the Applicant provides specific, documented facts: the Form produced by Triton is titled “for PRC Citizens”; it requires access to an Official Personal Record File (人事档案, “*Dang’an*”) containing academic records, appraisals by supervisors and peers, political history including party membership and assessments of political integrity, employment evaluations, and records of administrative penalties which are unrelated to criminal records (see detailed explanation of the *Dang’an* system at para 19 below); no comparable requirement is imposed on applicants of other nationalities. These are concrete facts not bald assertions and thus *Forde* does not apply.

C. The Applicable Standard: Balance of Probabilities

15. The Respondent relies on *Bokhari v. Top Medical Transportation Services*⁸ to establish that the HRTO determines jurisdictional issues on a balance of probabilities. The Applicant accepts this standard. As confirmed in *Bokhari*, this approach has been in effect since January 2021.⁹
16. Applying the balance of probabilities standard to the facts as alleged: the Form produced by Triton expressly targets PRC citizens; the Form requires more invasive documentation than is required of other applicants; the Respondent’s own Response confirms the Form is used consistently for PRC citizens and not others. On the balance of probabilities, the Applicant’s Code grounds were a factor in the differential treatment she experienced.

³ *Mehedi v Mondalez Bakery*, [2023 ONSC 1737](#) at para 15 [*Mehedi*].

⁴ *Forde v Elementary Teachers’ Federation of Ontario*, [2011 HRTO 1389](#) at para 17 [*Forde*].

⁵ [2026 HRTO 101](#) [*Gaspar*].

⁶ *Ibid* at para 13.

⁷ The Respondent’s Response, *Schedule A* at para 21.

⁸ [2024 HRTO 229](#) [*Bokhari*].

⁹ *Ibid* at para 20.

PART IV – THE APPLICANT EXPERIENCED ADVERSE IMPACT

17. The Respondent submits that the Applicant suffered no adverse impact because she completed all screenings and was not denied any service. This submission misunderstands what constitutes adverse treatment under the Code.

A. Adverse Treatment Does Not Require Denial of Service

18. Adverse impact does not require that service ultimately be denied. The Code prohibits unequal treatment in the provision of services, not only the ultimate denial of services.
19. The Applicant, as a PRC citizen, was required to provide access to her complete Official Personal Record File (人事档案, “*Dang’an*”), which is a document with no equivalent in Canadian law or practice. The “*Dang’an*” is not a résumé or employment history, but a permanent state-held dossier, created when an individual enters the school system and maintained throughout their lifetime by state institutions. Its contents include academic records, appraisals by supervisors and peers, political history including party membership and assessments of political integrity, employment evaluations, and records of administrative penalties.¹⁰ Crucially, an individual does not own or freely possess their own “*Dang’an*” because it is held by state institutions on their behalf. Requiring the Applicant to authorize access to this file means requiring her to grant a foreign private corporation access to a lifetime of state-compiled political and personal assessments, which have no relevance whatsoever to the purpose of a criminal record check.
20. The contrast with what other applicants must provide is stark. A non-PRC citizen undergoing the same background check is asked to provide information directly relevant to criminal history verification. A PRC citizen is asked to authorize access to a state-held political and personal dossier compiled over a lifetime. No comparable requirement is imposed on applicants of other nationalities. This disparity in treatment is the adverse impact.

B. The Requirement is Arbitrary and Disproportionate

21. Even where a requirement is applied as part of a service process, it may constitute discrimination if it is arbitrary, i.e., if it lacks a reasonable connection to a legitimate purpose. See *Rochon v Costco Wholesale Canada Ltd.*¹¹ citing *Empower Simcoe v JL*, 2022 ONSC 5371: “not every distinction is discriminatory; there must be a link between group membership and the arbitrariness of the conduct”.
22. In *Rochon*, the requirement to wear a mask was upheld because it had a legitimate, evidence-based public health rationale applied uniformly to all patrons. The present case is different in both respects: the additional documentation required of PRC citizens (involving academic records, appraisals by supervisors and peers, political history including party membership and assessments of political integrity, employment evaluations, and records of administrative penalties which are unrelated to criminal records) has no rational connection to the purpose of a criminal record check; and the requirement is not applied uniformly but only to PRC citizens.

¹⁰ See “*Dang’an*,” Wikipedia at the link <https://en.wikipedia.org/wiki/Dang%27an> (describing the *Dang’an* as containing “appraisals by supervisors and peers, academic reports from primary school to university, professional credentials, criminal convictions or administrative penalties, club/society memberships, employment records, and political history”), citing Wang Fei-ling and Country Policy and Information Unit, United Kingdom Home Office, “China Country Assessment” (April 2002); see also “Inside China’s Secret Files on Every Worker,” *The World of Chinese* (July 2023). The Applicant also has personal and professional familiarity with the *Dang’an* system, having obtained a Master of Law degree in China prior to her J.D. studies at Osgoode Hall Law School.

¹¹ [2026 HRTO 468](#) at para [54](#) [*Rochon*].

23. The Respondent's own employee confirmed that they "cannot read in Mandarin" and did not understand what information was being requested or how the Chinese authorities would process it. This acknowledgment reveals that the Form was simply passed along from a vendor without scrutiny. A requirement that the Respondent itself cannot explain or interpret cannot have a legitimate or rational purpose. This is the paradigm case of an arbitrary requirement.

C. Distinguishing *Fraser v. Canada Life Assurance Company*¹² and the "Normal Process" Argument

24. The Respondent may argue, as in *Fraser*, that requiring additional documentation is a normal/expected part of the service process and does not constitute discrimination. That argument fails here for a critical reason: in *Fraser* and related cases, the additional documentation requirements applied to all claimants uniformly.¹³ Here, the additional requirement, i.e., the PRC Personal Details Sheet and access to the Official Personal Record File/"*Dang'an*" applies only to PRC citizens. The differential is not administrative but identity-based.

D. The Respondent Cannot Delegate its Code Obligations to a Vendor

25. The Respondent submits that the Form is "vendor-supplied" and "vendor-mandated". This does not relieve the Respondent of its obligations under the Code. Triton, as the service provider, retains responsibility for the requirements it imposes on its customers through its chosen vendors. The decision to use a vendor whose process requires PRC citizens to provide more invasive documentation than other applicants is a decision for which Triton is accountable.
26. Furthermore, as noted above, the Respondent's own employee acknowledged they could not read the Form and did not know what information it required. A service provider that imposes requirements on its customers without understanding what those requirements entail, and without being able to explain their purpose, cannot be said to have discharged its obligations under the Code by reference to vendor instructions.

PART V – RESPONSE TO REQUEST FOR SUMMARY HEARING

27. The Respondent requests a summary hearing under Rule 19A on the basis that the Application has no reasonable prospect of success. The Applicant respectfully submits that the Application has a reasonable prospect of success and should proceed to a merits hearing.
28. The test at a summary hearing is set out in *Dabic v Windsor Police Service*,¹⁴ as applied in *A.H.*¹⁵ The HRTO assumes the Applicant's allegations to be true and asks whether, on those facts, there is a reasonable prospect of establishing a Code violation. The HRTO is careful not to dismiss an Application merely because the Respondent has an alternative explanation of events.¹⁶
29. Assuming the Applicant's allegations to be true: Triton required PRC citizens to provide access to a personal record file containing political assessments and employment evaluations, through a Form whose contents Triton's own employee acknowledged they could not understand; no comparable requirement was imposed on applicants of other nationalities; and the Applicant raised her concerns and received a dismissive and unresponsive reply. On these assumed facts, there is a reasonable prospect that the HRTO

¹² [2026 HRTO 662](#) [*Fraser*].

¹³ *Ibid* at para 15.

¹⁴ [2010 HRTO 1994](#) at paras 8-9 [*Dabic*].

¹⁵ *A.H.*, *supra* note 2 at paras 34-36.

¹⁶ *Ibid* at para 43.

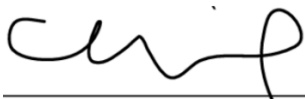
would find a prima facie case of discrimination in the provision of services on the basis of citizenship and place of origin.

30. The Respondent has not pointed to any objective evidence, undisputed by the Applicant, that directly contradicts the Applicant's account. Triton's characterization of the Form as "vendor-mandated" and "jurisdiction-specific" is an alternative explanation, which means the HRTTO should not treat as dispositive at the summary hearing stage.
31. The Applicant respectfully submits that this Application should not be dismissed at the summary hearing stage. The facts alleged, if proven, disclose a viable Code claim and deserve to be heard on their merits.

PART VI – CONCLUSION

32. The Applicant respectfully submits that:
 - (a) This Application is within the HRTTO's jurisdiction, as the Applicant's Code grounds and the differential treatment are explicitly linked on the face of the Respondent's own document;
 - (b) The Applicant experienced adverse treatment in the form of a disproportionate and arbitrary screening burden imposed because of her citizenship and place of origin;
 - (c) The Respondent's requests for jurisdictional dismissal and summary hearing should be denied; and
 - (d) The matter should proceed to a full hearing on the merits.

ALL OF WHICH IS RESPECTFULLY SUBMITTED THIS 26th DAY OF JULY, 2026



Chong Tan
Applicant